IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS
BEFORE HIS LORDSHIP HON. JUSTICE M. N. ESOWE

SUIT NO. NICN/LA/378/2021

BETWEEN

AMAL ABDULRAHMAN - **CLAIMANT**

AND

1. IKEJA HOTEL PLC
2. MARRIOTT INTERNATIONAL - **JUDGMENT DEBTOR RESPONDENT**
3. REX NIJHOF

MOTION ON NOTICE dated 14th November, 2022 and filed 17th November, 2022 praying for: -

1. AN ORDER of this Honourable Court setting aside its Order of the 1st November, 2022 striking out this cause for lack of diligent prosecution.

2. AN ORDER of this Honourable Court extending the time within which the Claimant herein may apply to re-list this suit against the Defendants.

3. AN ORDER re-listing this cause and re-instating the Claimant's suit against the Defendants, same having been struck out by Order of the Court.

4. AND for such further or other Orders as this Honourable Court shall deem fit to make in the circumstances.

UPON READING the affidavit in support of the Motion on Notice sworn to by Chioma Ehiaguina, Nigerian Citizen of 7th Floor, Mulliner Towers, Ikoyi, Lagos and filed at this Court Registry on 17th November, 2022.

AND AFTER HEARING Nnamdi Awa-Kalu Esq. of Counsel for Claimant/Applicant move his Motion on Notice dated 1st December, 2022.

IT IS HEREBY ORDERED:

1. That this Honourable Court hereby set aside its Order of the 1st November, 2022 striking out this cause for lack of diligent prosecution.

2. That time is hereby extended within which the Claimant herein may apply to re-list this suit against the Defendants.

3. That this Honorable Court hereby re-list this cause and re-instating the Claimant's suit against the Defendants, same having been struck out by Order of this Honorable Court.

4. The case is adjourned to 23/02/2023 for the mention.

Hon. Justice M. N. Esowe
Judge

ISSUED AT LAGOS UNDER THE SEAL OF THE COURT AND HAND OF THE HONOURABLE JUDGE THIS 31ST DAY OF JANUARY, 2023.

Kolade Oladunjoye Ajayi
Registrar II